



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-22-00425 | Dell Range Addition, 6th Filing – Final Plat (5908 Ridge Road)
Date: January 23, 2023

Background:

The item for consideration is a *Final Plat*. This is approved by Resolution.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 1/23/2023
- Public Services Committee 2/7/2023
- Consideration 2/13/2023

Planning Commission Recommendation:

The Planning Commission heard this item at their January 3, 2023 meeting and recommended the Governing Body approve this application (and grant the exception listed in the Staff Report) by a vote of 4-3. This recommendation allowed the final plat to be brought forward with the zoning map amendment (instead of just a preliminary plat). The applicant has indicated a willingness to withdraw the plat should the zoning map amendment not be approved.

The Planning Commission Staff report is attached and has not been changed.

Related Items:

- UDC-22-00425-01: Annexation
- UDC-22-00425: Zoning Map Amendment

Attachments:

1. Resolution
2. Final Plat Map (dated 12/13/2022)
3. Planning Commission Staff Report

RESOLUTION NO. _____

ENTITLED: “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR DELL RANGE ADDITION, SIXTH FILING, A REPLAT OF A PORTION OF TRACT 25, DELL RANGE ADDITION, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED SOUTHWEST OF THE INTERSECTION OF RIDGE ROAD AND HOLLAND COURT).”

WHEREAS, Bedrock Dev LLC have subdivided said land in accordance with the statutes in such cases made and provided;

WHEREAS, Bedrock Dev LLC the owners of the above described land, has caused a subdivision plat of said land to be made, acknowledged, and certified, particularly describing the lots, blocks, easements, and rights-of-way;

WHEREAS, the above described subdivision plat has been presented to the City of Cheyenne Planning Commission for consideration; the Planning Commission has recommended that said plat be approved by the Governing Body; and the plat has been duly executed by the Development Office;

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the subdivision described as Dell Range Addition, Sixth Filing, Cheyenne, Wyoming, be and the same hereby is approved and confirmed as presented, and that the Mayor and the City Clerk be and are hereby authorized, empowered, and directed to execute said plat, when Community Facility Fees have been paid in full.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2023.

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK



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CITY OF CHEYENNE PLANNING COMMISSION

JANUARY 3, 2023

STAFF REPORT

FILE: UDC-22-00425-02: Dell Range Addition, 6th Filing Plat (Expedited Review)

REQUEST: A plat to consolidate former lots into one lot.

LOCATION: West of Ridge Road, south of Storey Boulevard

APPLICANT: Gateway Construction - Jason Stephan

AGENT: AVI - Brad Emmons

OWNER: Bedrock Dev LLC

ZONING: County A-1 Agricultural and Rural Residential

PROPOSED ZONE: NR-3 Neighborhood Residential – High Density

PURPOSE: To consolidate land to allow multifamily development.

PREPARED BY: Seth Lloyd, Senior Planner



RECOMMENDED MOTION:

Move to **approve** the Dell Range Addition, 6th Filing Expedited Preliminary Plat, advancing the Final Plat to the Governing Body, with a recommended exception to block size.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.1.2 Preliminary Plat Approval
- UDC 2.1.3 Final Plat Approval
- UDC Article 4 Subdivisions
- UDC Article 5 Zoning Regulations
- PlanCheyenne

BACKGROUND:

The applicant is requesting approval of a plat to combine parcels into one large lot for multifamily development. The resulting lot would be approximately 10.7 acres.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Urban Residential	County A-1 Agricultural and Rural Residential	Rural residential
North	Urban Residential	County A-1, County MR Medium-density Residential	Rural residential
South	Urban Residential	County A-1, MR Medium Density Residential	Vacant, single-family residential
East	Urban Residential, Urban Transition Residential	NR-3 Neighborhood Residential – High Density, County A-1, MR	Apartments, rural residential, single-family residential
West	Urban Residential	MR	Single-family residential

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Preliminary Plat, the Commission must make the following findings required in UDC 2.1.2.d – a detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.1.2.d.1)

The future land use map within PlanCheyenne identifies this area as developing with a mix of residential uses, and the proposed plat in the proposed zoning district would be compatible with this objective. PlanCheyenne supports the use of existing infrastructure and timely provision of services (including emergency and education services). This development is proposed in an area which has largely existing infrastructure and no expansion of infrastructure is necessary. The property is within the Urban Service Boundary and has access to all utilities.

The application **complies** with this review criterion.

- 2) **The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities. (UDC 2.1.2.d.2)**

The proposed application combines properties to create one larger lot. Immediately to the north and east are streets; to the west, the land is already developed with no connections to this parcel; and to the south, the land is currently vacant, but that property has access to all infrastructure to the south.

The application **complies** with this review criterion.

- 3) **The division of land meets the purposes, intent, and all applicable standards in Article 4. (UDC 2.1.2.d.3)**

Community Facilities and Fees (4.2):

The proposed subdivision is small and in an area with existing facilities. It appears no public facilities (such as a fire station or public park) are needed with this plat. For fees based on acreage, the area of the plat is pro-rated to the nearest tenth of an acre. Fees based on 10.7 acres of land:

Land Acquisition Fee	\$3,745 (\$350 per acre)
Infrastructure Fee	\$3,745 (\$350 per acre)

Total Land Acquisition & Infrastructure Fees \$7,490.00

Per UDC Section 4.2.5, Table 4-2, the Land Acquisition & Infrastructure fee are payable at the time of the signing of the final plat.

Per UDC Section 4.2.5, Table 4-2, Enhancement Fees are payable at the issuance of a building permit for each structure (Residential Enhancement Fee is \$400 per dwelling unit).

Transportation Network (4.3):

This plat is occurring within an area of the community which has largely been previously developed. The plat could add a street connection with a stub out to the south. With the plat proposing multifamily development and the property to the south having all needed infrastructure to the south of it, a road is not necessary for future development. An exception for block sizes must be granted. While the existing block is about 180% oversized, any north-south division of this block would still likely result in at least one oversized block, and possibly in double-fronted lots, which would require a separate exception to this section of code.

Open Space (4.4):

Open space is required at 750sqft per unit or 8% of the gross development area, whichever is less. However, due to the nature of this application, plat-level open space is not required.

Required Improvements (4.5):

The street adjacent to the plat to the north is substandard and should be developed with this development. Utilities appear to exist in the area, although some extensions may be needed to service the development.

Public Safety Fees (4.6):

Public Safety Fees will be due with building permits of new construction on the site.

The application **complies** with this review criterion, with an exception.

- 4) **Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned. (UDC 2.1.2.d.4)**

No phasing is proposed with this project.

Review criterion **not applicable**.

- 5) **The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts. (UDC 2.1.2.d.5)**

Drainage:

A drainage analysis was submitted and reviewed. There were comments regarding downstream conveyance limitations. City Staff and the applicant anticipate addressing the specific issues with a site plan submittal.

Traffic:

A traffic study was submitted and reviewed. There were no concerns with traffic at the plat level for the project as presented. The Holland Court access point onto Ridge Road is too close to Storey to meet current standards, and mitigation options may be addressed with the site plan.

The application **complies** with this review criterion.

- 6) **Lots proposed for development shall be buildable lots according to the existing or proposed zoning district standards, result in design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district, and not aggravate nonconforming setbacks or currently adopted building and fire code access and separation requirements. (UDC 2.1.2.d.6)**

The proposed plat proposes one lot. The lot is buildable in the proposed zone district.

The application **complies** with this review criterion.

- 7) **All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance. (UDC 2.1.2.d.7)**

The plat proposes one multifamily lot. The Plat does not propose any lots subject to this criterion.

Review criterion **not applicable**.

- 8) **The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property. (UDC 2.1.2.d.8)**

The plat is adjacent to streets on the north and east. Surrounding properties are largely already developed (with the exception of the land to the south). The land to the south has access to

infrastructure to the south of it. Residential development is expected by the comprehensive plan and existing City zoning in the area.

The application **complies** with this review criterion.

9) The application is not harmful to the public health, safety, and welfare. (UDC 2.1.2.d.9)

City staff is satisfied that this proposed plat would not adversely affect the public health, safety, or general welfare.

The application **complies** with this review criterion.

10) Remainder lot(s) shall be clearly identified on the preliminary plat and shall not be developed or proposed for development for purposes. Remainder lot(s) shall be noted and described on all plats either graphically or by legal description. (UDC 2.1.2.d.10)

Remainder lots are not proposed with this plat.

Review criterion **not applicable**.

11) The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan. (UDC 2.1.3.d.1)

The Final Plat submitted with the application is substantially similar to the Preliminary Plat submitted.

The application **complies** with this review criterion.

12) The application meets any conditions or modifications of the approved preliminary plat. (UDC 2.1.3.d.2)

Through the review process and application of the Preliminary Plat, Staff recommended corrections for technical issues. These issues have been addressed with a revised submittal, and staff has no recommended conditions for this plat.

The application **complies** with this review criterion.

13) The application meets the purposes, intent, and applicable standards of Article 4. (UDC 2.1.3.d.3)

As a concurrent Preliminary and Final Plat application, this Final Plat review criterion is covered by the equivalent Preliminary Plat review criterion (subsection 3 above).

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, comments were received regarding the following issues:

1. Technical corrections.
2. Drainage requirements needing to be addressed with the Site Plan.
3. Access spacing and access control issues to be addressed with the Site Plan.
4. Block size standards.

CONCLUSION:

Staff analysis is that the application meets the review criteria and therefore recommends approval of the expedited plat application as submitted by the applicant, with the granting of an exception to block size requirements. The area this plat is proposed in an area with existing residential uses, including multifamily. The parcel is part of an oversize block, but has limited options to make meaningful additions to the street network.

ALTERNATIVES:

1. Recommend approval of the expedited preliminary plat, forwarding the Final Plat to the Governing Body. **(Staff Recommendation)**
2. Recommend approval of the preliminary plat with conditions and that a final plat addressing the conditions of approval be prepared and presented to the Governing Body.
3. Recommend approval of the preliminary plat as submitted by the applicant and forward the preliminary plat to the Governing Body.
4. Recommend approval of the preliminary plat subject to staff's recommended conditions and forward the preliminary plat to the Governing Body.
5. Recommend denial of the preliminary plat based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
6. Postpone the project until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

The Planning Commission may modify staff's recommended conditions, delete conditions, add conditions, or decide contrary to staff's recommendation. In the event conditions are modified, the conditions shall relate to applicable review criteria. In the event that the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

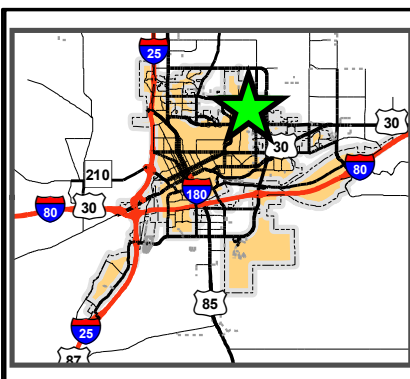
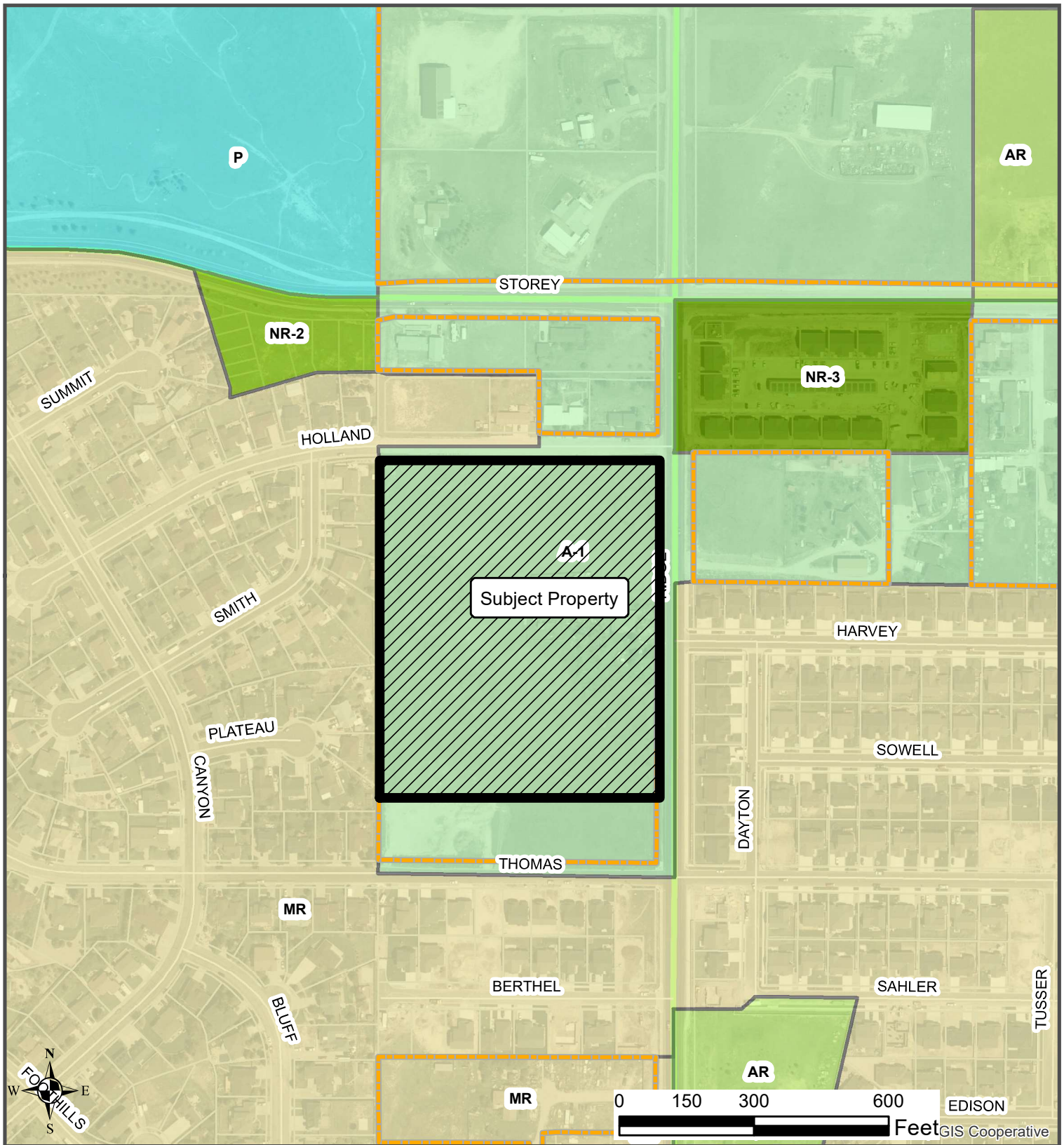
STAFF RECOMMENDATION:

Staff recommends approval of the expedited Preliminary Plat, advancing the Final Plat to the Governing Body, with the following exception:

1. Exception to UDC 4.3.3.c, regarding minimum block size and connectivity Block 1.

ATTACHMENTS:

1. Zoning Map
2. Land Use Plan Map
3. Master Application Form
4. Preliminary Plat (dated 12/13/2022)
5. Final Plat (dated 12/13/2022)

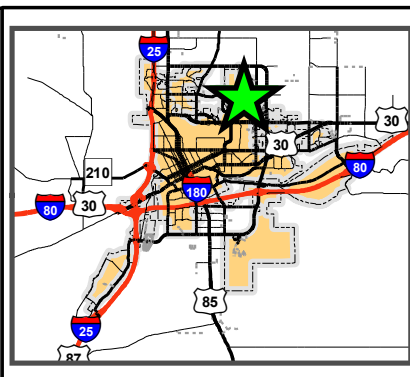
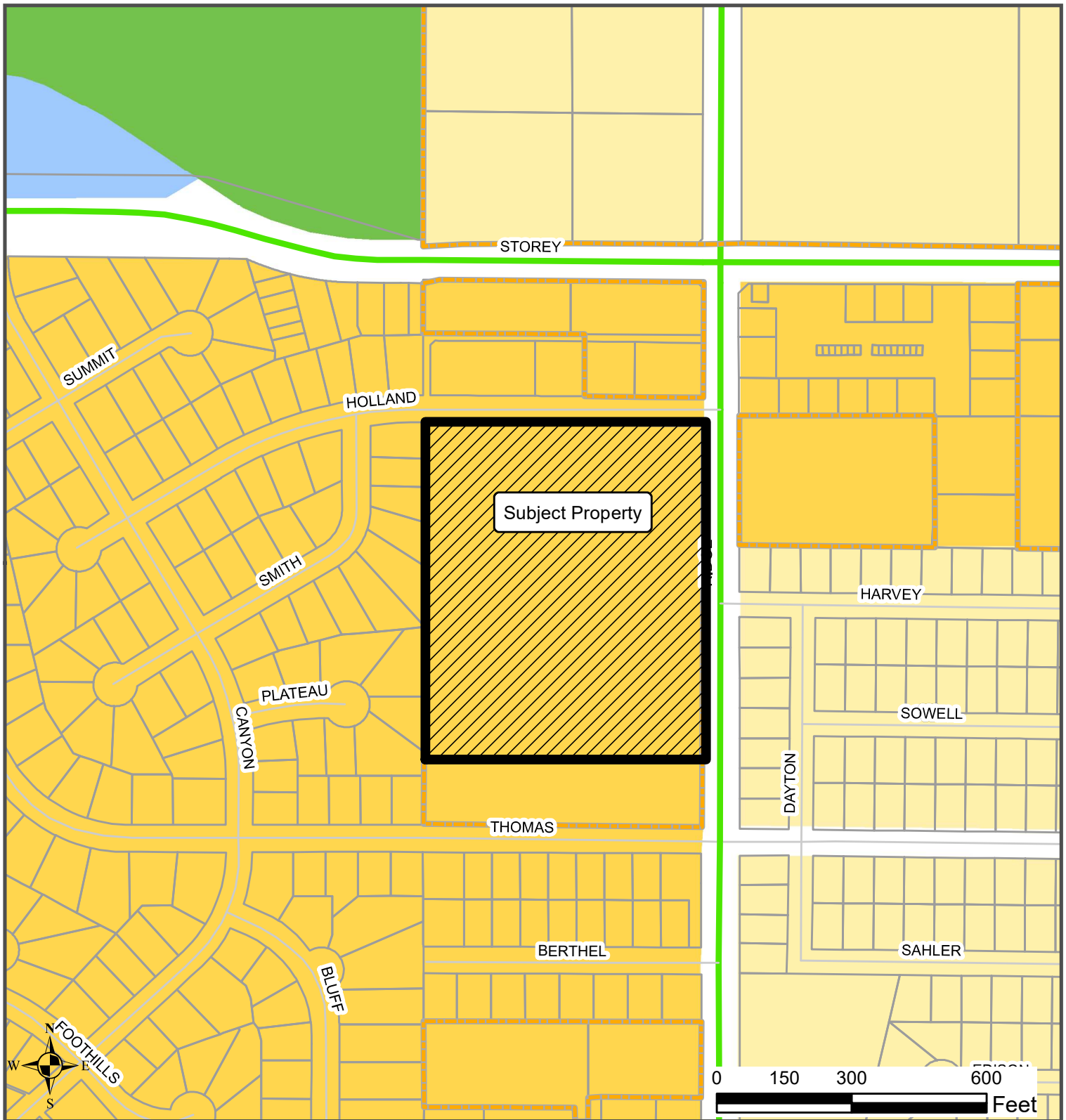


Attachment 1: Zoning Map UDC-22-00425

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



Attachment 2: Land Use Map UDC-22-00425

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Legend

Nov19_CityLimits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Platted not built		
Ownership		
Private		

Planning and Development: Plat - Expedited

Submission date: **16 November 2022, 8:30PM**
Receipt number: **29**
Related form version: **11**

General Information

Applicant Name: **Gateway Construction - Jason Stephan**

Applicant Address: **1820 Dillon Ave Ste. 100A**

Applicant City: **Cheyenne**

Applicant State: **WY**

Applicant Zip Code: **82001**

Applicant Phone: **3076328950**

Applicant Email: **jason-stephan@gateway-const.com**

Representative Name: **AVI - Brad Emmons**

Representative Address: **1103 Old Town Lane #101**

Representative City: **Cheyenne**

Representative State: **WY**

Representative Zip Code: **82009**

Representative Phone: **3076376017**

Representative Email: **emmons@avipc.com**

Owner Name: **Bedrock Dev LLC**

Owner Address: **PO Box 3244**

Owner City: **Cheyenne**

Owner State:	WY
Owner Zip Code:	82003
Owner Phone:	3076328950
Owner Email:	jason-stephan@gateway-const.com
Who is the primary contact regarding this application?	Representative
Letter of Authorization	ridge loa_001.pdf
Project Location (Street Address or General Location):	5908 Ridge Road
Assessor's Parcel ID number(s)	R0017452
Total Project Area	10.7
Existing Zoning	Other: A-1

Application-Specific Information

Eligibility Determination	I acknowledge that staff has determined this is eligible to be submitted as an expedited plat.
Written Statement	Annexation, zone change and plat to bring the parcel into the City and develop the property with apartments.
Current Subdivision	DELL RANGE ADDITION: SOUTH 1/2 TRACT 25 LESS THE SOUTH 144-1/2' PLUS
Lots affected by this proposal	Portions of a lot and vacated ROW
A pre-application meeting is not required, but recommended. Please indicate the date the pre-application meeting was held.	10/13/2021
Upload any pre-application meeting notes or summaries relevant to this proposal.	NorthRidgeApartmentsMeetingSummary10.13.2021.pdf
Are any easements proposed to be added, modified, or removed?	Yes

If easements are proposed to be added, modified, or removed. Attach Franchise Utility approval letters from all affected utilities. Failure to provide this information could result in delay of application review.

Open Space Approach

Open space will be provided with the site plan process.

Drainage Worksheet / Study

[gapt_dw_001.pdf](#)

Transportation Worksheet / Study

[North Ridge Apartments Traffic Study 2022-11-15.pdf](#)

Transportation Network Plan

[4597_PRELIMINARY PLAT.pdf](#)

Preliminary Plat Drawing

[4597_PRELIMINARY PLAT.pdf](#)

Final Plat Drawing

[4597_FINAL PLAT.pdf](#)

I acknowledge that final stamped and signed mylars are required to be submitted prior to scheduling for Governing Body introduction.

Signature / Certification

Applicant Signature

Name of signatory: Brad Emmons



[Uploaded signature image: brad emmons.jpg](#)

Please enter an email address for an email receipt.

emmons@avipc.com



EXISTING INDEX CONTOUR
EXISTING INTERMEDIATE CONTOUR
PROPOSED DRAINAGE DIRECTION
EXISTING PROPERTY LINES

EXISTING ZONING : A-1
PROPOSED ZONING : NR-3

SUBDIVISION CONTAINS 10.70 ACRES ±
TOTAL LOTS = 1
CONTOURS ARE FROM CITY OF CHEYENNE AERIAL TOPOGRAPHY,
FEMA FLOOD PLANS NOT APPLICABLE TO THIS PLAT.
PUBLIC WATER AND WASTE WATER SYSTEMS TO CONNECT TO EXISTING
CHEYENNE BOARD OF PUBLIC UTILITIES.
TWO DETENTION PONDS ARE TO BE USED AS OPEN SPACE TO SATISFY
REQUIREMENTS IN UDC TABLE 44-5.
A PROPOSED 30' SUNCORE EASEMENT TO BE GRANTED PER RIGHT OF WAY
CONTRACT (BOOK 343, PAGE 115).

GALEWAY CONSTRUCTION
1820 DILLON AVE, SUITE 200 A
CHEYENNE, WY 82001

DELL RANGE ADDITION, SIXTH FILING

PRELIMINARY PLAT



307.637.6017
11103 OLD TOWN LANE, SUITE 101
CHEYENNE, WY 82009
AVISAVEPC.COM

IV.

Dec: 13, 2022

DRAWN BY:

BC

RECEIVED

AD, BE	HECKED BY:
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4597
ON NO. 08

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PRELIMINARY PLAT
FOR
DELL RANGE ADDITION, SIXTH FILING

BEING SITUATED IN A PORTION OF THE NW $\frac{1}{4}$ OF THE NW $\frac{1}{4}$ OF SECTION 22, T14N, R66W OF THE 6TH PRINCIPAL MERIDIAN,
LARAMIE COUNTY, WYOMING
PREPARED NOVEMBER 2022

AWING NO. 1 CF 1

